

measures the period from contract formation to completion, subdivision (a)(3) asks whether the lease term itself is for a period longer than one year. (Civil Code section 1624(a)(3); *Bed, Bath & Beyond of La Jolla, Inc. v. La Jolla Village Square Venture Partners* (1997) 52 Cal. App. 4th 867, 877 [Civ. Code § 1624 (d), concerning agreements to lease real property for a term longer than one year, is a more specific provision than Civ. Code § 1624 (a), concerning agreements in general that cannot be performed within one year from the date of making, and Civ. Code, § 1624(d), controls over Civ. Code, § 1624, subd. (a), where the two provisions conflict].)

WCPC's Fact No. 3 asserts that the alleged lease ran from August 31, 2021 to the last Friday of May 2022, a period of approximately nine months, and well under the one-year threshold of section 1624(a)(3). WCPC does not meet its burden of establishing that the alleged lease agreement is barred by the statute of frauds as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Summary adjudication of the contract causes of action based on WCPC's statute of frauds defense is therefore denied. The Court does not address whether the evidence might support the part performance exception to the statute of frauds, or an estoppel to assert the defense.

B. Third Cause of Action for Fraudulent Concealment (Issue No. 4)

WCPC seeks summary adjudication of plaintiffs' third cause of action for fraudulent concealment on the ground that plaintiffs were not damaged. WCPC supports this issue with a single undisputed material fact, which is that "Plaintiffs never paid any money to WCPC." (See UMF No. 8, citing to Ex. D, McIntosh Decl., ¶13.) WCPC's framing of the damages issue is incorrect as a matter of law. The fact that plaintiffs never paid rent to WCPC does not establish the absence of damages on the third cause of action. There is a triable issue of fact whether Plaintiffs sustained damages as the result of WCPC's actions. (See Plfs.' Add'l. Fact Nos. 6-74.)

WCPC did present other evidence in support of the motion that was not incorporated into its separate statement. However, "[t]his is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, it does not exist." (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on other grounds.)

As WCPC's separate statement cites only UMF No. 8, the court declines to address the additional arguments in WCPC's brief regarding the sufficiency of the fraudulent concealment claim, or the competing evidence of the parties.

VII. Disposition

Based on the foregoing, WCPC's motion for summary adjudication of issues is **DENIED**. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C22-01746

CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III

***HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO ENFORCE SETTLEMENT AGREEMENT**

FILED BY: SEENO, ALBERT D., III

TENTATIVE RULING:

The parties filed a series of motions to seal in connection with the pending cross-motions relating to enforcement of the parties' settlement agreement (Add-On LINE 3) (the "Cross-Motions"). Those include the following (collectively, the "Motions to Seal"):

1. Motion to Seal filed November 6, 2025;
2. Motion to Seal filed November 12, 2025;
3. Motion to Seal filed January 27, 2026; and
4. Motion to Seal filed February 2, 2026.

The motions are all unopposed. The Court previously reset all related Motions to Seal to the same hearing date as the underlying Cross-Motions. To the extent that any of the Motions to Seal may still have future hearing dates, the matters are advanced for hearing, in the Court's discretion, and such future dates are VACATED.

Background

The Motions to Seal seek to seal portions of the parties' pleadings in connection with the Cross-Motions (the "Portions to be Sealed"). See e.g. Declaration of Charmaine G. Yu filed January 27, 2026 ("Yu Decl."), ¶12. The subject pleadings were filed with the Portions to be Sealed redacted from the public filings.

Analysis

Under the California Rules of Court, "[u]nless confidentiality is required by law, court records are presumed to be open." Rule 2.550(c) of the California Rules of Court ("CRC"). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and

(5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The unredacted versions of all pleadings were lodged for the Court’s review. The redacted portions and materials are represented to include private, non-public financial information related to a disputed debt, the inner financial workings and operations of a group of family owned businesses, and confidential employment and compensation information. See e.g. Yu Decl., ¶3. The Portions to be Sealed appear narrowly tailored.

The supporting declarations describe that the moving parties only seek to seal certain very specific portions of the subject pleadings. See e.g. Yu Decl., ¶12. For example, in the Declaration of Albert D. Seeno III in Support of Opposition to Albert D. Seeno Jr.’s Counter-Motion to Enforce Settlement Agreement filed January 27, 2026, a redaction appears at line 17. In the Opposition to Albert D. Seeno JR.’S Counter-Motion to Enforce Settlement Agreement filed January 27, 2026, contains targeted and narrowly tailored redactions throughout the document.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The Motions to Seal are GRANTED.
2. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6**
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

Before the Court is Defendant and Cross-Complainant Albert D. Seeno III’s and related entities’ (“Mr. Seeno-III”) motion to enforce settlement agreement pursuant to Code of Civil Procedure section